

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Rachel Ellman	Team: Squad #13	CCRB Case #: 201603725	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 04/26/2016 7:00 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 10/26/2017	Precinct: 90		
Date/Time CV Reported Fri, 04/29/2016 11:46 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Fri, 04/29/2016 11:46 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. Officers			
2. SGT Ryan Dwyer	832	940115	INT CIS
3. POF Krista Owens	16661	952082	PSA 3

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Kellan Oneill	10409	952069	PSA 3
2. POM Trevor Barton	19832	946770	PSA 3
3. DTS Patrick Barry	00249	917283	E S U
4. POM Joseph Armenio	05807	945477	PSA 3

Officer(s)	Allegation	Investigator Recommendation
A . SGT Ryan Dwyer	Abuse: Sgt. Ryan Dwyer authorized officers to enter and search § 87(2)(b) in Brooklyn.	A . Exonerated
B . SGT Ryan Dwyer	Abuse: Sgt. Ryan Dwyer refused to provide his name to § 87(2)(b)	B . Unsubstantiated
C . SGT Ryan Dwyer	Abuse: Sgt. Ryan Dwyer failed to show the search warrant to § 87(2)(b)	C . Unsubstantiated
D . SGT Ryan Dwyer	Abuse: Sgt. Ryan Dwyer threatened to notify Administration for Children's Services.	D . Exonerated
E . POF Krista Owens	Abuse: PO Krista Owens refused to provide her name to § 87(2)(b)	E . Unsubstantiated
F . POF Krista Owens	Abuse: PO Krista Owens failed to show the search warrant to § 87(2)(b)	F . Unsubstantiated
G . Officers	Abuse: Officers damaged § 87(2)(b)'s property.	G . Unsubstantiated

Case Summary

On April 29, 2016, § 87(2)(b) filed this complaint through the CCRB website.

At approximately 7 a.m. on April 26, 2016, § 87(2)(b) was awoken by approximately five uniformed, shield-wielding police officers and a dog breaking down the door of her apartment at § 87(2)(b) in Brooklyn. At the time, only § 87(2)(b) and her § 87(2)(b) year-old son § 87(2)(b) were present at the residence. § 87(2)(b) met Sgt. Ryan Dwyer, of the Intel Criminal Section 318, PO Kellan Oneill, PO Trevor Barton, and PO Krista Owens, all from PSA 3, in her living room (**Allegation A**) and was quickly instructed to leave the living room and remain in her son's bedroom; the named officers were dressed in plainclothes, while the PSA 3 officers included officers in uniform and plainclothes.

§ 87(2)(b) was summoned back to her living room, where officers questioned her about her husband and an individual she did not know. During this conversation, § 87(2)(b) asked the officers for their names (**Allegation B**), what precinct they were from, and to see the warrant that authorized the search (**Allegation C**), all of which were ignored. § 87(2)(b) was instructed to leave the living room and wait in the hallway adjacent to it, where she remained for approximately a half-hour with PO Krista Owens before being called back to the living room. There, she was once more questioned about this unknown man, and when she denied having any knowledge of him, officers threatened to notify the Administration for Children's Services about § 87(2)(b) (**Allegation D**). § 87(2)(b) returned to the hallway, where she continuously asked PO Owens to show her the search warrant for her home (**Allegation E**) and for her name (**Allegation F**). § 87(2)(b) requested this information from PO Owens on numerous occasions, yet these questions were never answered; there was, however, one instance where PO Owens suggested to § 87(2)(b) that one of the plainclothes officers she initially encountered would provide her with information about the warrant.

The officers left at approximately 9:30 am; no arrests were made, and § 87(2)(b) was never shown the search warrant. After the search, § 87(2)(b) noticed that the box spring of § 87(2)(b)'s bed was broken, an air mattress could no longer inflate properly, and the motor of an electric wheelchair was damaged; § 87(2)(b) believed all of these items were damaged in the search. (**Allegation G**)

Mediation, Civil and Criminal Histories

- This case is not eligible for mediation because of the allegations of property damage. (Board Review 01)
- § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- A FOIL request for a Notice of Claim regarding this incident was sent on September 16, 2016, and results are pending. (Board Review 19)

Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s first CCRB complaint. (Board Review 03)
- Sgt. Dwyer has had no allegations of misconduct in his 10 year tenure with the NYPD. (Board Review 04)

- PO Owens has had no allegations of misconduct in her four year tenure with the NYPD. (Board Review 07)

Potential Issues

- § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]

Findings and Recommendations

Explanation of Subject Officer Identification

- Per NYPD documentation, § 87(2)(b) [REDACTED] s testimony, and officer testimony, Sgt. Dwyer, PO Kellan Oneill, and PO Trevor Barton were the officers leading the investigation and search into § 87(2)(b) [REDACTED] s apartment. PO Joseph Armenio and PO Owens were otherwise uninvolved PSA 3 officers chosen to be part of the warrant execution.
- As aforementioned, § 87(2)(b) [REDACTED] could not recall many details of the incident, particularly in her description of the officers present. § 87(2)(b) [REDACTED] recounted engaging primarily with one officer, who Sgt. Dwyer and PO Barton suggested was Sgt. Dwyer; PO Oneill was uncertain as to whether he or Sgt. Dwyer primarily interacted with § 87(2)(b) [REDACTED] § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

Allegation A—Abuse: Sgt. Ryan Dwyer authorized officers to enter and search § 87(2)(b) [REDACTED] in Brooklyn.

§ 87(2)(b) [REDACTED] stated that officers erroneously, and thus unlawfully, entered and searched her home at § 87(2)(b) [REDACTED] in Brooklyn. (Board Review 01)

Per New York State Criminal Procedure Law 690.05(2) (a), officers may search a premises under the authority of a valid search warrant (Board Review 18), and per Warrant § 87(2)(b) [REDACTED] officers were authorized to conduct a local search warrant at § 87(2)(b) [REDACTED] (Board Review 08).

§ 87(2)(g) [REDACTED], it is recommended that *Allegation A* be *exonerated*.

Allegation B—Abuse: Sgt. Ryan Dwyer failed to show the search warrant to § 87(2)(b) [REDACTED]

Allegation C—Abuse: Sgt. Ryan Dwyer refused to provide his name to § 87(2)(b) [REDACTED]

Allegation D—Abuse: Sgt. Ryan Dwyer threatened to notify Administration for Children's Services.

§ 87(2)(b) [REDACTED] stated that she was interrogated by officers at the conclusion of the officers' search. Sgt. Dwyer repeatedly asked § 87(2)(b) [REDACTED] questions about her husband and a man she did not know. Sgt. Dwyer grew frustrated with § 87(2)(b) [REDACTED] and when she stated that she did not know this individual, he threatened to notify the Administration for Children's Services. Sgt. Dwyer continued to question § 87(2)(b) [REDACTED] about her husband, and in response she asked Sgt. Dwyer for

his name and precinct, and to see a copy of the search warrant if the officers were granted one. Sgt. Dwyer ignored § 87(2)(b) and again threatened to notify ACS of § 87(2)(b). In turn, she once more asked that Sgt. Dwyer provide her with identifying information and to see the search warrant, and she was again ignored. Sgt. Dwyer never provided § 87(2)(b) with his name, nor did he or any officer ever show her the search warrant.

Sgt. Dwyer stated that he entered § 87(2)(b)'s home with PO Oneill, PO Barton, and the PSA 3 officers after ESU officers secured the residence. Shortly thereafter, he approached § 87(2)(b) and her son, who sat on the couch in the living room. Sgt. Dwyer informed § 87(2)(b) that the officers were present as part of a narcotics investigation, and asked if she had any narcotics, weapons, or knowledge of any contraband in the home, which she denied. Sgt. Dwyer did not recall § 87(2)(b) requesting to see a copy of the search warrant, though stated that he typically carries a copy of the search warrant with him, should civilians request to see it. The search yielded both drug residue and paraphernalia, about which § 87(2)(b) denied any knowledge. Sgt. Dwyer stated that he did not recall any discussion with § 87(2)(b) about ACS, yet noted that discussion of contacting ACS with the parent or contacting ACS is standard procedure in a case where drugs are found. (Board Review 09)

PO Oneill also stated that he entered § 87(2)(b) after ESU officers secured the residence, and did so with Sgt. Dwyer, PO Barton, and the PSA 3 officers joining the investigation. PO Oneill did not recall the precise detail of his interaction with § 87(2)(b) yet noted that typical procedure would warrant either he or Sgt. Dwyer introducing themselves and explaining the nature of the search to § 87(2)(b). PO Oneill did not recall § 87(2)(b) explicitly asking for any officer's or to see the warrant. Of the team, PO Oneill stated that Sgt. Dwyer was most likely to have possessed a copy for presentation. PO Oneill stated that the search yielded packaging typical of heroin yet no narcotics. As a result, either he or Sgt. Dwyer explained to § 87(2)(b) that there was a possibility that ACS would be notified of her child living in close proximity to a narcotics operation. PO Oneill stated that such a notification is typical in a case where narcotics are recovered. (Board Review 10)

PO Barton stated that upon entry into § 87(2)(b) Sgt. Dwyer immediately approached § 87(2)(b) and informed her that they were executing a search warrant as part of a narcotics investigation, which he then presented to her. PO Barton testified that Sgt. Dwyer spoke to § 87(2)(b) again at a later point within the search, during which he informed her of the possibility that ACS would be notified due to the drugs recovered in her home. He did not recall § 87(2)(b) making any specific requests for an officer's name or to see the search warrant. (Board Review 11)

PO Owens stated that she was with § 87(2)(b) for the near entirety of the search, and that at no point did she hear § 87(2)(b) ask any officer to see the search warrant or for their names and badges. Further, she did not hear any officer speak with § 87(2)(b) about sending her children to ACS. (Board Review 17)

Per NYPD Patrol Guide Procedure 221-17: Officers have a legal obligation to show an occupant a copy of a search warrant when requested to do so. (Board Review 12)

Per NYPD Patrol Guide Procedure 203-09: An officer must clearly state their rank, name, shield

number and command to anyone who requests them to do so. (Board Review 13)

§ 87(2)(g)

§ 87(2)(g), it is recommended that ***Allegation B*** and ***Allegation C*** be ***unsubstantiated***.

Per NYPD Patrol Guide Procedure 215-03: A report of suspected maltreatment must be prepared whenever a member of the service reasonably suspects that a child is maltreated. (Board Review 14)

§ 87(2)(g)

§ 87(2)(g) As such, it is recommended that ***Allegation D*** be ***exonerated***.

Allegation E—Abuse: PO Krista Owens failed to show the search warrant to § 87(2)(b)

Allegation F—Abuse: PO Krista Owens refused to provide her name to § 87(2)(b)

§ 87(2)(b) stated that PO Owens took her to her son's bedroom during the officers' search of the rest of her residence. During this time, § 87(2)(b) asked PO Owens on multiple occasions to provide her name and precinct, and inquired if there was a search warrant for her residence. With each inquiry, PO Owens informed § 87(2)(b) that a different officer would inform her of this information later; § 87(2)(b) believed this was in reference to one of the male officers in plainclothes.

PO Owens stated that she stayed with § 87(2)(b) while the remaining officers searched § 87(2)(b)'s apartment. During this time, she and § 87(2)(b) had little communication. At one point while waiting in the bedroom, § 87(2)(b) asked PO Owens to explain the situation to her, to which PO Owens stated that § 87(2)(b) should direct her inquiry to Sgt. Dwyer; PO Owens stated that § 87(2)(b) never explicitly asked her to see a copy of the search warrant, and stated that she did not have a copy, herself. Further, she stated that § 87(2)(b) never asked her for her name or badge.

Per NYPD Patrol Guide Procedure 221-17: Officers have a legal obligation to show an occupant a copy of a search warrant when requested to do so. (Board Review 12)

Per NYPD Patrol Guide Procedure 203-09 states that an officer must clearly state their rank, name, shield number and command to anyone who requests them to do so. (Board Review 13)

§ 87(2)(g)

§ 87(2)(g), it is recommended that ***Allegation E*** and ***Allegation F*** be ***unsubstantiated***.

Allegation G—Abuse: Officers damaged § 87(2)(b)'s property.

§ 87(2)(b) stated that in the aftermath of the search, the box spring of her son's bed was broken, an air mattress could no longer inflate properly, and the motor of an electric wheelchair was damaged. She provided no further detail or documentation regarding this damage.

Sgt. Dwyer did not recall any property damage in the course of the search. He stated that he and his team looked under and atop beds, yet did not open mattresses or box springs to look inside.

PO Oneill stated that he had no knowledge of officers damaging any items in § 87(2)(b)'s apartment. He stated that looking under furniture and within drawers was within the purview of the search warrant, yet that there was no reason for officers to damage items pursuant to the search. PO Oneill had no recollection of a box spring breaking amidst the search, nor did he recall seeing an air mattress or an electric wheelchair in the residence.

PO Barton stated that § 87(2)(b)'s bedroom was his focal area of concern during the search, where he looked underneath and around the bed in the room. After clearing § 87(2)(b)'s bed, PO Barton emptied the items of her room and placed them each on her bed after examination. PO Barton testified that he did not damage the mattress or any other items in the bedroom as part of his investigation, nor did he witness any broken property elsewhere in the residence.

PO Owens stated that she did not see any damaged property in § 87(2)(b)'s home, and that she was unsure if property damage was permissible under the search warrant.

§ 87(2)(g)

_____, therefore, it is recommended that
Allegation G be unsubstantiated.

Squad: 13

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date